



Republika ng Pilipinas
KAGAWARAN NG KATARUNGAN
Department of Justice
Manila



DEPARTMENT CIRCULAR NO. **015**

TO : ALL CONCERNED

SUBJECT : THE 2024 DEPARTMENT OF JUSTICE – NATIONAL PROSECUTION SERVICE (DOJ-NPS) RULES ON PRELIMINARY INVESTIGATIONS AND INQUEST PROCEEDINGS

DATE : JUL 16 2024

Pursuant to the mandate and policy reforms of the Department and in furtherance of its executive function to investigate the commission of crimes and prosecute offenders with due regard to existing laws, rules and regulations, the following new rules on preliminary investigation and inquest proceedings are hereby adopted:

RULE I
TITLE, SCOPE, COVERAGE, AND POLICIES

Section 1. Title. These rules shall be referred to as the "2024 DOJ-NPS Rules on Preliminary Investigations and Inquest Proceedings."

Section 2. Scope. The 2024 DOJ-NPS Rules on Preliminary Investigations and Inquest Proceedings shall govern the conduct of preliminary investigations and inquest proceedings in all prosecution offices in the National Prosecution Service of the Department of Justice as enumerated in Republic Act. (R.A.) No. 10071¹, subject to the provisions of Department Circular (D.C.) No. 20² dated 31 March 2023, where applicable.

Section 3. Coverage. The conduct of a preliminary investigation proceeding shall be required for crimes or offenses where the penalty prescribed by law is at least six (6) years and one (1) day without regard to fine.

This notwithstanding, the investigating prosecutor may *motu proprio*, at any stage of the proceeding, dismiss the complaint if there is no prima facie evidence with reasonable certainty of conviction, as defined in Section 5, Rule II hereof, provided,

¹ Prosecution Service Act of 2010, April 8, 2010

² Policy on Pro-Active Involvement of Prosecutors in Case Build-Up, March 31, 2023.

the dismissal is with prior approval of the head of the prosecution office³.

Section 4. Policies. The 2024 DOJ-NPS Rules on Preliminary Investigations and Inquest Proceedings shall be consistent with the policy of the Department to file an information in court only when *prima facie* evidence with reasonable certainty of conviction is established. It institutionalizes the following policies:

- (a) The executive and inquisitorial nature of the conduct of preliminary investigations and inquest proceedings;
- (b) The pro-active role of prosecutors in the investigation of crimes; and
- (c) The adoption of procedures for e-filing, as well as the conduct of virtual preliminary investigation hearings and e-inquest proceedings, as alternatives.

RULE II QUANTUM OF EVIDENCE

Section 5. Quantum of Evidence. The quantum of evidence for preliminary investigations and inquest proceedings is *prima facie* evidence with reasonable certainty of conviction. This quantum exists when a *prima facie* case is established by the evidence-at-hand, including but not limited to testimonial evidence, documentary evidence, and real evidence; and such evidence, on its own and if left uncontroverted, shall be sufficient to establish all the elements of a crime or offense charged, and consequently warrant a conviction beyond reasonable doubt.

The quantum of evidence is met when the prosecutor is convinced that the entirety of evidence presented by the parties is (a) admissible, (b) credible, and (c) capable of being preserved and presented to establish all the elements of the crime or offense, as well as the identity of the person or persons responsible therefor. Reasonable certainty of conviction also includes a summary evaluation of the evidence presented by the respondents through their counter-affidavit.

RULE III AUTHORITY TO CONDUCT PRELIMINARY INVESTIGATIONS AND INQUEST PROCEEDINGS

Section 6. Prosecutors and Officers Authorized to Conduct Preliminary Investigation and Inquest Proceedings. All prosecutors, including prosecution attorneys, mentioned under R.A. No. 10071, and other officers as may be allowed by law, are authorized to conduct preliminary investigations and inquest proceedings.

State prosecutors or prosecutors assigned at the Office of the Secretary of Justice Prosecution Staff shall have national jurisdiction over all crimes or offenses involving

³ Head of the prosecution office refers to the Prosecutor General, Regional Prosecutor, Provincial Prosecutor, or City Prosecutor.

national security, all criminal cases for which task forces have been created, and all criminal cases in which the venues were transferred to avoid a miscarriage of justice, or when so directed by the Secretary of Justice as public interest may require.

The city, provincial, or regional prosecutors and their assistants shall have jurisdiction over crimes or offenses, and violations of ordinances, cognizable by the proper courts in their respective territorial jurisdictions.

RULE IV PRELIMINARY INVESTIGATION

Section 7. Preliminary Investigation. Preliminary Investigation is a summary proceeding to determine whether a person should be indicted in court after ascertaining, based on the evidence provided and after case build-up has been conducted (in cases where case build-up is necessary pursuant to Section 5 of D.C. No. 20 dated 31 March 2023), that there is *prima facie* evidence with reasonable certainty for the respondent's conviction and that he/she should be held for trial.

Virtual preliminary investigation, as an alternative means, is the conduct of preliminary investigation through videoconferencing using the appropriate information and communications technology (ICT). This may be availed of at the initial hearing where both parties are present and the ICT therefor is available to both the prosecution office and the parties.

Section 8. Parties. The parties to a preliminary investigation are the complainant and the respondent.

The *complainant* is the offended party (which may be a natural or juridical person), a person authorized under existing laws or rules to file the complaint-affidavit on behalf of the offended party, a law enforcement agency, or any other public entity charged with the enforcement of the law violated.

The *respondent* is the party being charged with the commission of a crime or offense or violation of an ordinance and against whom the complaint-affidavit is filed.

Section 9. Submissions. The affidavits allowed to be filed or submitted during the preliminary investigation are the following:

- (a) A *complaint-affidavit* is a written statement charging a person with a crime, offense, or violation of an ordinance, subscribed by the offended party, a person authorized by Section 5, Rule 110 of the Rules of Criminal Procedure to file the complaint on behalf of the offended party, a law enforcement officer, or any other public officer charged with the enforcement of the law violated, and sworn to before a prosecutor or any government official authorized to administer oath, or in their absence or unavailability, before a notary public.

- (b) A *counter-affidavit* is a written statement of the respondent, indicating his/her defenses and subscribed and sworn to before a prosecutor or any government official authorized to administer an oath, or in their absence or unavailability, before a notary public.
- (c) A *reply-affidavit* is a written statement by the complainant which answers new allegations in the counter-affidavit, subscribed and sworn to before a prosecutor or any government official authorized to administer an oath, or in their absence or unavailability, before a notary public.
- (d) A *rejoinder-affidavit* is a written statement of the respondent in response to the reply-affidavit, subscribed and sworn to before a prosecutor or any government official authorized to administer an oath, or in their absence or unavailability, before a notary public.

All affidavits as defined above shall include affidavits of witnesses and other documentary evidence attached thereto.

A motion for suspension of proceedings by reason of a prejudicial question may be allowed if all the conditions therefor under existing rules are present.

No motion for bill of particulars shall be filed in lieu of counter-affidavit.

No motion or request for extension of time shall be allowed except when the interest of justice demands, such as when a party needs reasonable time or sufficient opportunity to: (a) engage the services of counsel to assist him/her during the preliminary investigation; or (b) examine or verify the existence, authenticity, or accuracy of voluminous records, files, accounts, or other papers or documents presented or submitted in support of a pleading; or (c) undertake studies or research on novel, complicated, or technical issues or issues of law and of facts attendant to the case under investigation. Any extension of time granted to submit a responsive pleading on meritorious grounds shall not exceed ten (10) days.

No motion for inhibition shall be granted unless based on just, valid or compelling reason/s pursuant to prevailing laws, rules, or policies, such as but not limited to the following instances: (a) the prosecutor or his/her spouse or child is interested as heir, legatee, creditor, or otherwise; or (b) the prosecutor is related to either party within the 6th degree of consanguinity or affinity or to counsel within the 4th degree of consanguinity or affinity; or (c) the prosecutor has been named executor, administrator, guardian, trustee, or counsel of any of the parties. However, a prosecutor may, in the exercise of his/her discretion, disqualify himself/herself for other just or valid reasons; provided, the head of the prosecution office has approved the same.

Affidavits of desistance may be allowed only if not prohibited under applicable laws, rules, and existing policies.

Section 10. Procedures for Regular Preliminary Investigation. The following procedures shall be observed in the conduct of preliminary investigation:

- (a) The preliminary investigation is initiated by the filing of the original complaint-affidavit with two (2) duplicate copies for official file and such number of copies as there are respondents, with the prosecution office. Each complaint-affidavit shall be accompanied by a duly-accomplished NPS Investigation Data Form (IDF).

The complaint-affidavit shall state, among others, the names and addresses of the parties, the date and place where the alleged crime or offense or violation of the ordinance was committed, and a statement of the facts of how the crime or offense or violation of the ordinance was committed. It shall be accompanied by the affidavits of his/her witnesses, as well as other supporting evidence to establish a *prima facie* evidence with reasonable certainty of conviction.

- (b) Upon receipt of a complaint-affidavit and before the same is docketed, the head of the prosecution office shall ensure sufficiency in form of the complaint-affidavit and the completeness of evidence. For this purpose, he/she shall require the complainant, the referring law enforcement agency, or any third party to submit any lacking piece of evidence.

Once the head of the prosecution office determines that the complaint-affidavit is sufficient in form and the evidence is complete, the same shall be docketed.

- (c) When the respondent is a child in conflict with the law (CICL), the preliminary investigation shall be conducted pursuant to R.A. No. 9344,⁴ as amended by R.A. No. 10630,⁵ other applicable laws, issuances, and existing policies on the matter.
- (d) Within five (5) calendar days from receipt of the entire records by the investigating prosecutor, he/she shall either recommend the dismissal of the complaint-affidavit to the head of the prosecution office if he/she finds no ground to continue with the investigation, or issue the corresponding subpoena to the parties to appear before him/her for the preliminary investigation hearing. The subpoena shall set the date, time, and place of appearance for the preliminary investigation hearing, which shall not exceed thirty (30) days from the investigating prosecutor's receipt of the entire case records. The subpoena to the respondent shall include the complaint-affidavit and its attachments and shall direct the respondent to submit his/her counter-affidavit and/or affidavit of his/her witnesses on the date set for the purpose, which must be at least ten

⁴ Juvenile Justice and Welfare Act of 2006.

⁵ An Act Strengthening the Juvenile Justice System in the Philippines.

(10) days from receipt of the subpoena and the complaint-affidavit.

For voluminous records, the prosecutor shall set a separate date for the respondent to pick up the entire case records, which must not be less than ten (10) days prior to the scheduled preliminary investigation hearing. When there are pieces of object evidence, the respondent shall be given the opportunity to examine the same and to take photographs at his/her expense.

- (e) During the preliminary investigation hearing, the respondent shall file his/her counter-affidavit which he/she shall subscribe and swear to before the investigating prosecutor or any government official authorized to administer an oath, or in their absence, a notary public.

The respondent or his/her authorized representative shall file the original copy of his/her counter-affidavit and two (2) duplicate copies for official file with the prosecution office, and furnish a copy to the complainant or each complainant.

The personal appearance of a respondent during preliminary investigation may be dispensed with provided that his/her counter-affidavit was subscribed and sworn to before any prosecutor, or any government official authorized to administer an oath, or in their absence, a notary public.

A motion to dismiss in lieu of a counter-affidavit shall not be allowed except when it is verified by the respondent and contains his/her defenses, in which case it shall be treated as a counter-affidavit. If the respondent does not appear, the investigating prosecutor shall require proof from the complainant that the respondent's address in the complaint-affidavit, or in the NPS IDF, is the respondent's last known address. If despite receipt of a subpoena at his/her last known address, the respondent fails to appear or file his/her counter-affidavit without any justifiable reason, the investigating prosecutor may consider the case submitted for resolution.

- (f) The investigating prosecutor, after receiving the counter-affidavit and after ensuring that the complainant has been furnished a copy thereof, may either consider the case submitted for resolution, or when there are facts and issues to be clarified from a party or a witness, set the case for a physical or virtual clarificatory hearing, within ten (10) calendar days from said receipt. Attendance of both complainant and the respondent shall be mandatory.
- (g) During the clarificatory hearing, the investigating prosecutor may perform any or all of the following: (1) ask clarificatory questions; (2) have the case submitted for resolution; or (3) require the filing of a reply-affidavit and/or a rejoinder-affidavit.

The prosecutor may require the filing of a reply-affidavit if the counter-affidavit

contains new issues of fact or questions of law which are material and substantial in nature. In such instances, the respondent shall have the opportunity to file his/her rejoinder-affidavit.

- (h) The complainant shall file the original copy of his/her reply-affidavit and two (2) duplicate copies for official file with the prosecution office, and furnish a copy to the respondent or each of the respondents. The respondent may file a rejoinder-affidavit in the same manner as the filing of the counter- affidavit.

In no instance shall the filing of the reply-affidavit and rejoinder-affidavit be more than ten (10) calendar days from receipt of the pleading being responded to.

The rejoinder-affidavit shall be the last pleading allowed.

- (i) At any time during the preliminary investigation but before the case is submitted for resolution, the prosecutor may, upon motion or *motu proprio*, issue *subpoena duces tecum* or *ad testificandum* to require either of the parties or any of the witnesses, including third parties (private individuals or offices and government officers and offices), to produce books, records, documents or evidence, or execute sworn statements that are material to the investigation.

Prosecutors may initiate criminal complaints under Article 151 (*Resistance and Disobedience to a Person in Authority or the Agents of Such Person*) of the Revised Penal Code, as amended, and Presidential Decree No. 1829 (*Obstruction of Justice*), and the corresponding administrative complaints where appropriate, for any willful or unexplained failure of any person to comply with said subpoena.

No motion to reopen preliminary investigation shall be entertained unless justified by the circumstances, such as when there are newly-discovered pieces of evidence that have substantial value to the investigation. The preliminary investigation may also be re-opened, through a motion, when the complainant or respondent failed to participate in the proceedings due to the non-receipt or belated receipt of the subpoena.

Section 11. Procedures for Virtual Preliminary Investigation. The following procedures shall be observed in the conduct of virtual preliminary investigation:

- (a) The procedures under Section 10(a) to (e) shall apply. If the investigating prosecutor finds that the conduct of a virtual preliminary investigation will be beneficial to the fair, speedy, and efficient administration of justice, and the conditions set forth in Section 7 are present, the investigating prosecutor may set the continuation of the proceedings through videoconferencing.
- (b) Before the initial regular/face-to-face preliminary investigation hearing is

terminated, the investigating prosecutor shall issue an order stating that the parties opted to continue the proceedings through videoconferencing. Such order shall likewise contain the following details:

- (1) the official e-mail addresses and contact details of the prosecution office, the prosecutor, the parties, their witnesses, and counsels;
- (2) the date and time of the clarificatory hearing or the e-filing and e-service of pleadings, whichever is applicable;
- (3) the date and time of the submission of the hard copies of documents to the prosecution office, which shall not be more than three (3) calendar days prior to the videoconference hearing;
- (4) the date and time of the videoconference hearing;
- (5) the access details (link and passcode) of the videoconference platform (e.g., Zoom), and;
- (6) such other matters as may be necessary to define the parameters of the videoconference hearing.

The parties shall sign the order as proof of their conformity thereto.

The investigating prosecutor shall ensure that the schedule for the clarificatory hearing or the e-filings, as the case may be, complies with the period prescribed under Section 10(f) and (h).

If the respondent fails to submit his/her counter-affidavit during the initial hearing and extension is granted on meritorious grounds, the e-filing of same may be allowed provided that the same shall not exceed ten (10) days.

- (c) The filing of counter-affidavit (in case an extension is allowed), or when deemed necessary, of reply-affidavit or rejoinder-affidavit, shall be made electronically via email. Prior to said electronic filing or service, the submitting party shall have his/her affidavit and/or the affidavit of his/her witnesses subscribed and sworn to before any prosecutor, or government official authorized to administer oath, or in their absence or unavailability, before a notary public, and has jurisdiction over the residence of the affiant. Thereafter, the electronic copy in Portable Document Format (PDF) of the subscribed and sworn affidavits shall be transmitted through email to the official e-mail addresses contained in the order, on or before the schedule set for the purpose.
- (d) The PDF copy of the counter-, reply-, or rejoinder-affidavit shall be separate from the PDF copies of each of the accompanying documents. The filename of each document shall pertain to their respective title or description. All PDF copies of documents must be completely legible.
- (e) Documents that are e-filed and e-served beyond office hours are deemed filed and served on the same day.
- (f) The hard copy of the original affidavit and two (2) duplicates shall be submitted to the prosecution office either personally or by an accredited courier on or before the schedule set in the order. The party submitting the hard copy shall

likewise file a verified declaration that the electronically-filed affidavit and accompanying documents, if any, are complete and true copies of the hard copies filed with the prosecution office.

- (g) During the videoconference hearing, the investigating prosecutor shall require the affiants to reaffirm their oath in their affidavits. The investigating prosecutor shall personally examine the affiants and may ask questions that can aid in the investigation and the resolution of the case.
- (h) All videoconference hearings shall be recorded.
- (i) Failure to timely file the affidavits via email and to submit the hard copies thereof with the required verified declaration shall be deemed a waiver of the party's right to do so. Electronic copies of affidavits or of any accompanying document not in PDF, or in PDF but not legible, or are protected by a password or other encryption, or with embedded executable code or scripts, or are otherwise corrupted, shall not be considered as having been filed and therefore excluded from the records of the case.

RULE V

INQUEST PROCEEDINGS

Section 12. Inquest. It is an informal and summary investigation conducted by a prosecutor, or other officers allowed by law, in cases involving persons arrested and detained without the benefit of a warrant of arrest issued by the court for the purpose of determining whether said persons should remain under custody and correspondingly be charged in court. *E-inquest*, as an alternative, is the conduct of inquest through videoconferencing using the appropriate ICT.

Section 13. Procedures for Inquest Proceedings. The following procedures shall be observed in the conduct of inquest:

- (a) The inquest proceeding is initiated by the filing of the original of the referral letter including two (2) duplicate copies for official file and such number of copies as there are respondents, prepared by the law enforcement agency (LEA) or by a private citizen who arrested a person without a warrant of arrest to the docket section of the prosecution office, within the applicable period under Article 125 of the Revised Penal Code, as amended: twelve (12) hours for crimes or offenses punishable by light penalties or their equivalent, eighteen (18) hours for crimes or offenses punishable by correctional penalties or their equivalent, or thirty-six (36) hours for crimes or offenses punishable by afflictive or capital penalties or their equivalent. When the person under custody is a CICL, the inquest proceeding shall be conducted pursuant to R.A. No. 9344, as amended by R.A. No. 10630, other applicable laws, issuances, and existing policies on the matter. The referral letter shall include all the required evidence (affidavit of arrest, investigation report, complaint-affidavit or judicial affidavit, among others).

- (b) The docket section shall then immediately forward the referral to the head of the prosecution office or his/her designated prosecutor who shall provisionally determine the validity of the warrantless arrest for purposes of ascertaining whether the person detained should remain in custody and be charged with the crime for which he/she was arrested without a warrant.

Should the warrantless arrest be valid, the referral shall be evaluated for completeness of the required evidence that will establish the elements of the crime/offense and the availability of testimonial, real/object, and documentary evidence. Only referrals determined to be complete shall be docketed and assigned to an inquest prosecutor.

If incomplete, the referring LEA or the arresting private citizen shall be required to submit the lacking evidence within the applicable period under Article 125 of the Revised Penal Code, as amended. Once completed, the case shall be docketed for inquest.

Should the LEA or the private citizen concerned fail to submit the required evidence within the applicable period under Article 125 of the Revised Penal Code, as amended, the arrested person shall be ordered released and the records returned to the referring LEA or in case of citizen's arrest, be referred to the nearest LEA that exercises jurisdiction over the place where the crime or offense or violation of ordinance was committed for the possible refile of the complaint.

Should the prosecution office determine that the warrantless arrest was invalid, the arrested person shall be ordered released.

- (c) During the inquest proceeding, the prosecutor shall ensure that the respondent is represented by counsel and that the said counsel has received the referral and its attachments. The inquest prosecutor shall explain to the arrested person the nature of the proceedings, the charges against him/her, and his option to avail his/her right to a preliminary investigation. Thereafter, the inquest prosecutor shall administer the oath for all the affiants, and whenever necessary, conduct a clarificatory questioning to clarify factual issues.
- (d) If the respondent opts for the conduct of a preliminary investigation, he/she shall be required to sign a waiver of the provisions of Article 125 of the Revised Penal Code, as amended, in the presence of counsel. Notwithstanding the said waiver, the respondent may apply for bail and the investigation must be terminated within fifteen (15) calendar days from its inception.
- (e) The inquest prosecutor shall immediately resolve the case, discussing the following matters: (1) provisional determination regarding the validity of the warrantless arrest, and (2) the existence of *prima facie* evidence with reasonable certainty of conviction. The prosecutor shall prepare the information, when applicable.

Section 14. Procedures for E-inquest. The following procedures shall be observed in the conduct of e-inquest:

- (a) The inquest prosecutor, on his/her own initiative or upon request of the referring LEA or concerned private citizen, may opt for the conduct of e-inquest, provided that both the prosecution office and the parties have access to ICT. E-inquest is conducted following the same procedure under Section 13, except that the referral letter and all the required documentary evidence, in PDF form, are e-filed to the official email address of the prosecution office, and the proceedings are conducted through videoconferencing via any platform, whichever is practicable (e.g., Zoom platform, Microsoft Teams, Google Meet, among others).
- (b) The referring LEA or the arresting private citizen and the counsel of the respondent shall be provided with the details of the videoconferencing (i.e., date, time, access link, username, and passcode) which shall be recorded. During the videoconference, the inquest prosecutor shall: (1) ensure the attendance of the parties and verify their identities; (2) record all relevant events and narrations in the minutes; (3) administer the oath or affirmation, and; (4) clarify factual issues, if any.
- (c) If the respondent avails of his/her right to a preliminary investigation, the inquest prosecutor shall direct the referring LEA, the arresting private citizen, or the counsel for the respondent to facilitate the execution of the waiver of Article 125 of the Revised Penal Code, as amended. The waiver signed by the respondent and his/her counsel shall be transmitted to the inquest prosecutor via email.
- (d) The hard copy of the original and two (2) duplicate copies of the referral letter and all the required documents and such number of copies as there are respondents as well as the original of the waiver, if applicable, shall be submitted to the prosecution office within the same reglementary period mentioned in Section 13(a).

RULE VI DISPOSITION OF CASES

Section 15. Resolution and Information. A *resolution* is the ruling or disposition of the prosecutor on the preliminary investigation and inquest proceedings which determines whether an information should be filed in court or the complaint should be dismissed.

An *information* is an accusation in writing charging a person with a crime or offense subscribed, certified by a prosecutor and filed with the proper court. It shall be in

the name of the "People of the Philippines" and against all persons who appear to be responsible for the crime/offense.

The certification of the prosecutor in the information shall be under oath and shall include the following:

- (a) that he/she has personally examined the complainant and his/her witness/es;
- (b) that there is *prima facie* evidence with reasonable certainty of conviction of the accused when the case is tried in court based on the available evidence and the presence of testimonial, real /object, and documentary evidence on hand;
- (c) that the accused was informed of the complaint and of the evidence submitted against him/her;
- (d) that the accused was given an opportunity to submit controverting evidence, and;
- (e) that the filing of the information is with the prior authority of the Prosecutor General, City, or Provincial Prosecutor.

If the information emanates from an inquest proceeding, the prosecutor, in addition to the above-enumerated requirements, shall certify that the accused has not opted to avail of his/her right to a preliminary investigation and has not executed a waiver pursuant to Article 125 of the Revised Penal Code, as amended.

The resolution and information shall be approved by the Prosecutor General, City/Provincial Prosecutor, or his/her duly authorized deputies. The parties shall be furnished with copies of the Resolution at their address on record.

The information filed in court shall be supported by the affidavits and counter-affidavits of the parties and their witnesses, together with the other supporting evidence and the resolution on the case.

Section 16. Disposition and Recommendations. If the prosecutor determines based on the evidence that there is no *prima facie* evidence with a reasonable certainty that the respondent will be convicted once tried in court, he/she shall dismiss the complaint, with the authority or approval of the head of the prosecution office. The prosecutor shall cite all the legal grounds and bases for the dismissal of the complaint in his/her resolution; provided that the dismissal shall be without prejudice and may be refiled when new or additional pieces of evidence are produced upon further case build-up, as the case may be.

When the investigating prosecutor recommends the dismissal of the complaint but the recommendation is disapproved by the head of the prosecution office on the ground that there exists a *prima facie* evidence with a reasonable certainty of conviction, the latter may file the information against the respondent, or direct another prosecutor to do so without conducting another preliminary investigation.

If the prosecutor determines that there is *prima facie* evidence with reasonable

certainty, he/she shall issue a resolution recommending the filing of Information in court. He/she shall henceforth prepare an information.

Section 17. Period to Resolve Cases. All preliminary investigation complaints shall be resolved by the investigating prosecutor within a period of sixty (60) calendar days from the date of assignment with a maximum of thirty (30) day extension in the following cases: (a) capital offenses, (b) complex issues (c) with counter-charges; (d) consolidation of related complaints; and (e) reassignment. The recommendatory resolution and information shall be transmitted to the head of office for approval within five (5) calendar days from the date of the resolution.

The recommendatory resolution and information shall be acted upon by the Prosecutor General, City/Provincial Prosecutor, or his/her duly authorized deputies, within ten (10) calendar days from receipt of the resolution and information. The resolution shall be promulgated within five (5) days from its approval.

Inquest referrals shall be resolved within the day and transmitted to the head of office for approval on the next working day.

RULE VII REMEDIES

Section 18. Motion for Reconsideration. The aggrieved party may file a motion for reconsideration of the resolution within fifteen (15) days from receipt.

The motion for reconsideration shall be assigned to the investigating prosecutor or another prosecutor within three (3) days from the filing thereof. It shall be resolved within thirty (30) days from the date of assignment.

Section 19. Petition for Review. Resolutions of the Prosecutor General or the City, Provincial, or Regional Prosecutor on preliminary investigation or motion for reconsideration may be the subject of a petition for review or appeal pursuant to D.C. No. 27, series of 2022. Provided that, the petition for review shall be accompanied by a motion to suspend proceedings, as filed with the court.

However, resolutions of the Prosecutor General or Regional Prosecutor on appeal of the cases cognizable by first level courts shall be final and no longer appealable to the Office of the Secretary of Justice.

The resolution of the Secretary of Justice on appeal in criminal cases cognizable by the second level courts shall be final, executory, and non-appealable, provided that cases covered by Section 18⁶ of Administrative Order No. 22, series of 2011, and

⁶ "Appeals from decisions/resolutions/orders of the Department of Justice shall continue to be limited to those involving offenses punishable by *reclusion perpetua* to death in accordance with MC No. 58 (s. 1993)."

Memorandum Circular No. 58,⁷ series of 1993, may still be elevated on appeal before the Office of the President.

Section 20. Motion for Reconsideration on Petition for Review. The aggrieved party may file a verified motion for reconsideration of the resolution within fifteen (15) days from receipt.

RULE VIII

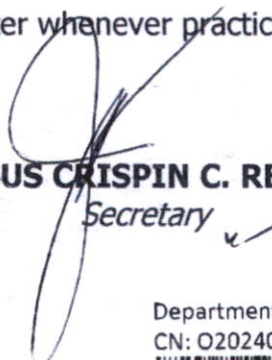
EFFECTIVITY, REPEALING CLAUSE, and CONSTRUCTION

Section 22. Effectivity. These rules shall take effect after fifteen (15) days from publication in the Official Gazette or two (2) newspapers of general circulation and shall remain in full force until further orders.

Section 23. Repealing Clause. These rules shall repeal all inconsistent rules and orders previously issued by the Department.

Section 24. Construction. These rules shall be construed in harmony with other rules and orders of this Department in so far as they are applicable and consistent herewith.

The Rules of Court shall apply in suppletory character whenever practicable.


JESUS CRISPIN C. REMULLA
Secretary

Department of Justice

CN: O202407062



⁷ "No appeal from or petition for review of decisions/orders/resolutions of the Secretary of Justice on preliminary investigations of criminal cases shall be entertained by the Office of the President, except those involving offenses punishable by *reclusion perpetua* to death wherein new and material issues are raised which were not previously presented before the Department of Justice and were not ruled upon in the subject decision/order/resolution, in which case the President may order the Secretary of Justice to reopen/review the case, provided, that, the prescription of the offense is not due to lapse within six (6) months from notice of the questioned resolution/order/decision, and *provided further*, that, the appeal or petition for review is filed within thirty (30) days from such notice."